

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Chelsea Yogerst	Team: Squad #12	CCRB Case #: 201603088	☐ Force	☒ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 03/31/2016 9:21 PM	Location of Incident: In front of 2031 7th Avenue	Precinct: 28	18 Mo. SOL 9/30/2017	EO SOL 9/30/2017	
Date/Time CV Reported Mon, 04/04/2016 9:48 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 04/11/2016 11:04 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Creel Brown	14622	955770	028 PCT
2. POM Paul Giangrosso	27402	948343	028 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Veronica Nickey	15241	956130	028 PCT
2. POM Christian Saal	26739	943766	028 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Creel Brown	Discourtesy: PO Creel Brown acted discourteously toward § 87(2)(b)	
B.POM Creel Brown	Discourtesy: PO Creel Brown spoke discourteously to § 87(2)(b)	
C.POM Paul Giangrosso	Discourtesy: PO Paul Giangrosso spoke discourteously to § 87(2)(b)	
§ 87(4-b), § 87(2)(g)		

Case Summary

On April 4, 2016, § 87(2)(b) filed the following complaint with IAB. On April 11, 2016, IAB transferred this complaint to the CCRB.

On March 31, 2016, at approximately 9:20 a.m., § 87(2)(b) was double parked in front of 2031 7th Avenue in Manhattan. PO Creel Brown, of the 28th Precinct, allegedly slammed § 87(2)(b) hand on the hood of his car (**Allegation A**). PO Brown allegedly said, “Give me your fucking license” (**Allegation B**). PO Paul Giangrasso, also of the 28th Precinct, told § 87(2)(b) that he did not want him to think that all officers were “assholes” (**Allegation C**). § 87(2)(b) was issued a parking summons (06 Board Review).

There is no video evidence for this case.

Mediation, Civil and Criminal Histories

- This case was suitable for mediation but § 87(2)(b) rejected it.
- § 87(2)(b) did not file a Notice of Claim (08 Board Review).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officers CCRB Histories

- This is § 87(2)(b) second CCRB complaint § 87(2)(b)
- PO Brown has been a member of the service for two years and has two allegations in one case. Among these allegations, there are no substantiated allegations § 87(2)(g)
- PO Giangrasso has been a member of the service for six years and this is the first CCRB complaint filed against him.

Findings and Recommendation

Recommendations

Allegation A-Discourtesy: PO Creel Brown acted discourteously toward § 87(2)(b)

Allegation B-Discourtesy: PO Creel Brown spoke discourteously to § 87(2)(b)

§ 87(2)(b) stated that when PO Brown approached him, he asked if he wanted a B-summons. When § 87(2)(b) stated that he was not sure what a B-summons was, PO Brown slammed § 87(2)(b) left hand on the hood of § 87(2)(b) vehicle and said that the hood was warm and the car was on. PO Brown held § 87(2)(b) hand down for approximately three seconds. PO Brown then told § 87(2)(b) that he needed to provide his license because his car had been idle and running. § 87(2)(b) touched the hood and said that the car was not on. He then went to reach for his license and told PO Brown that he was not refusing to provide his license but wanted to know why he needed it because he was being issued a parking summons. PO Brown yelled that § 87(2)(b) was disrespecting him because he was not listening. § 87(2)(b) told PO Brown that he was listening to him and had no problem giving his license but just wanted to understand why he had to provide it. PO Brown said, “Give me your fucking license.” PO Brown’s partner, PO Veronica Nickey, instructed PO Brown to give § 87(2)(b) a double parking ticket and then leave the scene.

She then placed her hand towards PO Brown as if to move him, but PO Brown pushed past her and repeated, “Give me your fucking license.”

PO Brown did not recall slamming § 87(2)(b) hand on his vehicle and denied touching § 87(2)(b) vehicle while he was standing near him. He denied stating, “Give me your fucking license” or using any other form of profanity during the incident.

PO Nickey denied seeing PO Brown touch § 87(2)(b) vehicle. PO Saal and PO Giangrasso denied that PO Brown slammed § 87(2)(b) hand on his vehicle. PO Nickey, PO Saal and PO Giangrasso denied that PO Brown said, “Give me your fucking license” or used any profanity during the incident.

§ 87(2)(g)

Allegation C-Discourtesy: PO Paul Giangrasso spoke discourteously to § 87(2)(b)

§ 87(2)(b) stated that after PO Brown and PO Nickey left the scene, PO Giangrasso apologized to him and explained that PO Brown was a rookie who did not know which summons to issue. PO Giangrasso then told § 87(2)(b) that he did not want him to think that all cops were “assholes.” § 87(2)(b) responded that he did not think that but was worried that PO Brown may end up harming someone because he had acted disrespectfully to him. § 87(2)(b) shook hands with PO Giangrasso at the end of their conversation and described their interaction as amiable.

PO Giangrasso testified that in an attempt to deescalate the situation, he explained to § 87(2)(b) that PO Brown was a new officer and asked that he forgive him and his eagerness to do his job. PO Giangrasso admitted that he told § 87(2)(b) that he did not want him to think that all cops were “assholes” because he was trying to level with him in an informal way and speak to him as though they were both civilians. PO Giangrasso also wanted to explain that the officers were not just there to mess up his night. PO Giangrasso did not make the statement with any type of aggression. There were no additional reasons why he used the word “asshole.” § 87(2)(b) was cooperative and told PO Giangrasso that he understood and was not blaming them. During the incident, there was a crowd of people near where § 87(2)(b) had parked their vehicle but they did not interfere.

PO Brown, PO Nickey, and PO Saal denied hearing PO Giangrasso make the alleged statement.

Patrol Guide Procedure 203-09 mandates that officers are to speak courteously and respectfully when interacting with civilian members of the public (16 Board Review). According to NYPD v. Court, OATH Index No. 78667/03, in certain stressful street encounters, limited profanity may be used to gain compliance or maintain control of the incident (17 Board Review).

§ 87(2)(g)

§ 87(2)(g) [Redacted]
[Redacted]
[Redacted]

§ 87(4-b), § 87(2)(g) [Redacted]
[Redacted]
[Redacted]
[Redacted]

[Redacted]
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[Redacted]
[Redacted]
[Redacted]
[Redacted]

Squad: 12

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date